

Subject: LAW

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Paper : ADVANCED CONSTITUTIONAL LAW

Module : EQUALITY-I: CLASSIFICATION, NON-DISCRIMINATION AND NON-ARBITRARINESS



Component - I - Personal Details

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Component - I (B) Description of Module

Subject Name	Law
Paper Name	Advanced Constitutional Law
Module/ Name/Title	Equality-I: Classification, Non-Discrimination and Non-Arbitrariness
Module Id	10
Pre-requisites	Basic Knowledge of the concept of Equality, Reasonable Classification, Non Discrimination, Non Arbitrariness under Indian Constitutional law.
Objectives	To understand the basic concepts relating to classification and affirmative action
Keywords	Equality, Reasonable Classification, Non Discrimination, Non Arbitrariness, Reservation

Component - II

Module 10: Equality-I: Classification, Non-Discrimination and Non-Arbitrariness

Structure:

1. Introduction
2. Learning Outcome
3. Right to Equality- Fundamental Right Guaranteed By Article 14
4. Article 14 Permits Reasonable Classification
5. Article 14 Strikes at Arbitrariness
6. Article 14 Provides Positive and not Negative Equality
7. Rules of Natural Justice Implicit in Article 14
8. Conclusion
9. Summary

1. Introduction

In a system wedded to freedom and democracy, it is only fair that the fundamental rights of the citizens enshrined in the Constitution should have primacy over any privileges or special rights of any class of people, including the elected legislators, and that all such claims should be subject to judicial scrutiny, for situations may arise where the rights of the people may have to be protected even against the Parliament or against captive or capricious parliamentary majorities of the moment.¹ These observations were made by Supreme Court in *Justice Ripusudan Dayal (Retd) v State of MP*² where the validity of certain letters were challenged which were issued by Secretary, Vidhan Sabha with regard to a case registered by the Special Police Establishment (SPE) of the Lokayukt Organisation, against the officials of the Vidhan Sabha alleging irregularity in the construction work carried out in the premises of Vidhan Sabha.³ Thus, the basic law that all citizens should be treated equally before the law holds good in the case of members of Parliament as well. They have the same rights and liberties as ordinary citizens except when they perform their duties in the Parliament. The privileges, therefore, do not, in any way, exempt members from their normal obligation to society which apply to them as much and, perhaps, more closely in that as they apply to others.⁴

2. Learning Outcome

2.1 Awareness about different concepts involved in Article 14

2.2 Understanding the expanding horizons of Right to Equality

3. Right to Equality- Fundamental Right Guaranteed By Article 14

Equality clause, embodied in Article 14 does not speak of mere formal equality before the law but embodies the concept of real and substantive equality which strikes at the inequalities arising on account of vast social and economic differentiation and is thus consequently an essential ingredient of social and economic justice. Article 14 of the Constitution states that the State shall not deny to any person equality before law or the equal protection of the laws within the territory of India.⁵ It talks about two expressions namely i.e. Equality before law; and Equal protection of laws.

• 3.1 Equality Before Law

¹ *Justice Ripusudan Dayal (Retd) v State of MP*, (2014) 4 SCC 473, 497, Para 51(v), Justice Sathasivam.

² (2014) 4 SCC 473.

³ *Id.* at 480, Para 1, Justice Sathasivam.

⁴ *Id.* at 498, Para 52, Justice Sathasivam.

⁵ Constitution of India 1950, Art. 14.

The phrase “equality before law” finds place in almost all written Constitution that guarantee fundamental rights. It is English in origin. It is a familiar feature of what Dicey called the “Rule of Law”. “Rule of Law” means that no man is above the law and that every person whatever be his rank or condition, is subjected to the ordinary law of the land and is amenable to the jurisdiction of the ordinary tribunals. He observes: “With us every official, from the Prime Minister down to a constable or a Collector or taxes, is under the same responsibility for every act done without legal justification as any other citizen.”⁶ “Equality before law” thus means absence of any special privileges for any particular person. It also strikes at arbitrary power on the part of the Government. It is, therefore, a negative concept. This, however, is not an absolute rule and there are a number of exceptions to it i.e., Foreign diplomats, Judges, President of India as well as state Governors etc.⁷

- **3.2 Equal Protection of Laws**

The phrase “equal protection of laws” is based on section 1 of the fourteenth Amendment of the Constitution of the United States of America adopted on July 28, 1868 which runs as: “nor shall any State deny to any person within its jurisdiction the equal protection of laws.”⁸ This phrase is interpreted to mean “subjection of equal laws applying to all in the same circumstances.” It means that all persons have the right to equal treatment in similar circumstances both in the privileges conferred and in the liabilities imposed by laws. It requires that equal laws should be applied to all in the same situation and that there should be no discrimination between one person and another. Thus, the phrase “equal protection of laws” lays down the rule that “like should be treated alike and not that unlike should be treated alike.”⁹ It is known to be positive in content. It is a pledge of the protection of equal laws.

4. Article 14 Permits Reasonable Classification

⁶ V N Shukla, *Constitution of India*, 37 (Revised by Mahendra P Singh, 10th edn, EBC Publishing (P) Ltd 2007).

⁷ M P Jain, *Indian Constitutional Law*, 930 (Revised by Justice Ruma Pal and Samaraditya Pal, 6th edn 2011).

⁸ *Supra* note 6 at 37.

⁹ *Supra* note 7 at 931.

All persons are not equal by their nature, attainment or circumstances. The varying needs of different classes of persons often require separate treatment. As a consequence the legislature must have power to make laws distinguishing, selecting and classifying persons and things upon which its laws are to operate.¹⁰

- **4.1 Reasonable Classification – An Integral Part of Article 14**

Article 14 permits classification. Classification is merely a systematic arrangement of things into groups or classes, usually in accordance with some definite scheme. It must be reasonable and not arbitrary, artificial or evasive.

Case	Provision/Rule/Regulation	Reasonable Classification
<i>Chiranjit Lal Chowdhury v Union of India</i> AIR 1951 SC 41.	1. Promulgation of the Sholapur Spinning and Weaving Company (Emergency Provisions) Ordinance, 1950, empowering the Central Government to take over the management and administration of the Sholapur Spinning and Weaving Co Ltd., which was closed down due to disputes between the management and the employees. 2. The Ordinance was subsequently replaced by an Act of Parliament, containing similar provisions.	The court observed that the law would be constitutional, even if it applied to one person or one class of persons, if there was sufficient basis or reason for it.
<i>Ram Krishan Dalmia v Justice S.R. Tendolkar</i> AIR 1958 SC 538.	1. Appointment of Commission of Inquiry under the Commission of inquiry Act, 1952, with Justice S.R. Tendolkar as its Chairman, against one of the Dalmia concerns, on the ground of mismanagement in the said concern, apprehending considerable loss to the investing public. 2. Contended that the Commission of inquiry Act, 1952 gave wide and unregulated discretion to the Government which could result in the denial of equality.	The discretion conferred by the Act was not unguided because the Act had clearly laid down the policy, viz, to enquire into matters of public importance. The Court upheld the action taken against the petitioner and laid down that while Article 14 forbade class legislation, it did not forbid reasonable classification for the purposes of legislation.

- **4.2 Principles For Determining Reasonable Classification as Laid Down in *Dalmia's Case*¹¹, Further Elaborated in *Re Special Courts Bill, 1978*¹² and followed by Courts**

1. The basic principle of Right to Equality is that all persons similarly circumstanced should be treated alike both in privileges conferred and liabilities imposed.
2. The State is vested with power to determine, who should be regarded as a class for purposes of legislation and in relation to a law, enacted on a particular subject, by the process of classification.

¹⁰ *Id.*, at 931.

¹¹ *Ram Krishan Dalmia v Justice S.R. Tendolkar*, AIR 1958 SC 538.

¹² AIR 1978 SC 478.

3. Classification mean segregation in classes which had a systematic relation usually found in common properties and a rational basis of characteristics its postulated.
4. Tests for reasonable classification - The classification must have some basis i.e. must be founded on an intelligible differentia which distinguishes persons or things that are grouped together from others left out of the group. The differentia must have a nexus with the object sought to be achieved by the statute in question.
5. Single individual may be treated as a class by himself on account of some reasons applicable to him and not applicable to others.
6. The Court will always presume in favour of constitutionality of an enactment and the burden is upon the person who alleges violation of constitutional norms to prove any such violation.
7. For application of this principle of constitutionality, the court may take into consideration matters of common knowledge, the history of the times and may assume every state of facts which can be conceived existing at the time of legislature.
8. Where classification is not based on reasonable grounds then this presumption of constitutionality cannot be carried to the extent of always holding that there must be some undisclosed reasons for subjecting certain individuals to discriminating legislation.
9. Members of Parliament as well as State Legislative Assembly are the representatives of the people. They understand their need and make laws in order to find solution to their problems.
10. Legislature is free to identify the degree of harm and may limit its restrictions to those cases where the need is deemed to the clearest. Thus, it could recognize the degree of harm but that classification should never be arbitrary, artificial or evasive.
11. The statute itself cannot be condemned as discriminatory if it has clear and definite legislative policy, an effective method of carrying out that policy and discretion vested upon a body of administrators for selective application of law to certain classes or groups or persons.
12. Discretionary power would not necessarily mean discriminatory powers. It cannot be assumed that the authority would always act in an arbitrary manner if discretion is conferred upon it by law.
13. A practical assessment of the operation of the law in a particular circumstance is necessary.

- **4.3 Basis of Reasonable Classification**

Classification to be reasonable must be founded on some intelligible differentia which distinguishes persons or things that are grouped together from those left out of the group. There may be different basis of classification referable to different considerations in each case like geographical basis, historical basis, nature of business, nature of persons, nature of offences, educational qualification etc.

Basis	Instance	Reasonable Classification or not
Sex	Section 497 of the Indian Penal Code 1860 defines the offence of adultery. It provides that it is only the adulterer who shall be punished for the offence and the woman, the adulteress would not be punished even as an abettor. Section 198 (2) of the Criminal procedure code, 1974 gives the right to prosecute the adulterer to the husband of the adulteress and not to the wife of the adulterer.(<i>V Revathi v Union of India</i> , AIR 1988 SC 835)	The philosophy underlying appears to be that as between the husband and the wife social goodwill be promoted by permitting them to make up or break up the matrimonial tie rather than to drag each other to the criminal court. They can either condone the offence in a spirit of forgive and forget and live together or separate by approaching a matrimonial court and snapping the matrimonial tie by securing divorce.
	<i>Medha Kotwal Lele v Union Of India</i> (AIR 2013 SC 93)	The Apex Court observed that the existing laws, if necessary, be revised and appropriate new laws be enacted by Parliament and the State Legislatures to protect women from any form of indecency, indignity and disrespect at all places (in their homes as well as outside), prevent all forms of violence – domestic violence, sexual assault, sexual harassment at the workplace, etc; and provide new initiatives for education and advancement of women and girls in all spheres of life.
Financial Status	The Right to Education Act, 2009 has been passed by the Parliament which provides for free and compulsory education to children. (<i>Society for Unaided P. School of Rajasthan v Union of India</i> , AIR 2012 SC 3445)	Section 12(1) © Provides for admission to class I, to the extent of 25% of the strength of the class, of the children belonging to weaker section and disadvantaged group and provide free and compulsory elementary education to them till its completion is a valid classification. Thus, classification between children belonging to economically weaker section(EWS) of the society and others is valid.
Time of Acquiring Educational Qualifications	For the purpose of granting incentives, the classifications adopted by the FCI between an employee obtaining a higher qualification after joining service and an employee who already possessed such qualification before joining the service.(<i>Food Corporation of India v Bhartiya Khadya Nigam Karmchhari Sangh</i> , AIR 2012 SC 703)	The purpose is to motivate them to acquire higher qualifications for their own benefit as well as of their employer. Thus, classification is valid as incentive is in the form of a special increment as ‘personal pay’ to be merged in pay at the time of promotion to the next higher grade. There is no discrimination between the in service employees and the employees recruited with higher qualification offending either Article 14 or 16 of the Constitution.
Relations by Blood and Others	The State Government has sought to collect stamp duty on indirect and inappropriate mode of transfer by providing that power of attorney given to a person other than kith or kin(blood relations), without consideration, authorizing such person to sell immovable property situated in Madhya Pradesh will attract stamp duty at two per cent on the market value of the property which is subject matter of power of attorney.(<i>State of M.P. v Rakesh Kohli</i> , AIR 2012 SC 2351.)	The Madhya Pradesh State Legislature has sought to levy stamp duty on such ostensible document, the real intention of which is the transfer of immovable property. Thus, classification between two categories of agent, namely, an agent who is a blood relation, i.e. father, mother, wife or husband, son or daughter, brother or sister and an agent other than the kith and kin is valid.

Nature of Offence	The Uttar Pradesh Gangsters and Anti- Social Activities (Prevention) Act, 1986 provides that the accused under the Act shall be tried by Special Court. (<i>Dharmendra Kirthal v State Of UP, AIR 2013 SC 2569.</i>)	Such kind of organized crimes has become epidemic in the society and has to be dealt with an iron hand. Thus, classification between an accused who faces trial in other courts and the accused in the special courts is valid.
Geographical Area	A law may be applicable to one part of the territory of India and not to the other parts depending on particular circumstances and peculiar geographical conditions prevailing in that area.	In <i>Kishan Singh v State of Rajasthan</i> , it was held that Article 14 only prohibits unequal treatment of persons similarly situated and a classification might properly be made on territorial basis, if that was germane to the purposes of the enactment and no tenancy legislation can be held to contravene the article solely on the ground that it does not apply to the entire State. (AIR 1955 SC 795.)
State	The contention was that Section 3-A of Bombay Housing Board Act which exempts lands or buildings belonging to or vested in the Board from the operation of the Bombay Rent Act offends against the equal protection clause of the Constitution. (<i>Buburao v Bombay Housing Board, AIR 1954 SC 153.</i>)	The term person in Article 14 does not include "State". Therefore, a classification which treats the State, differently from persons, may not be violative of the rule of equal protection of law. A law which exempted the lands, buildings or factory run by the Government from operation but applied to other factories, was held not to be discriminatory.
Laws Applicable to a Single Individual	Prime Minister is allowed to use an aircraft belonging to Indian Air Force for non-official purposes but this privilege was not given to other ministers. (<i>P V Shastri v Union of India, AIR 1974 Del 1</i>)	There would be no violation of Article 14 as Prime minister forms a class by himself. Moreover it is necessary to ensure his personal safety and enable him to discharge his official business promptly.
Tax Laws	Where the classification is made with the object of taxing only the economically stronger while leaving out the economically weaker sections of society that would be a good reason to uphold the classification if it does not otherwise offend any of the accepted norms of valid classification.	In <i>R K Garg v Union of India</i> , the court upheld the constitutional validity of the Special Bearer Bonds (Immunities and Exemptions) Ordinance 1981. It granted immunity from penal consequences to persons investing their back money in the special bearer bonds while others not so investing were subjected to punishment. It had a rational nexus with the object of the Act, namely to unearth black money for being utilized for productive purposes. (AIR 1981 SC 2138)
Disabilities	The Ministry of Finance, Government of India, took the view that a visually impaired person cannot be equated with hearing impaired person since persons who are deaf and dumb are not physically dependent on others for commuting from one place to another, hence they are not entitled to double rate of transport allowance. (<i>Deaf Employees Welfare Association v Union of India, (2014) 3 SCC 172</i>)	Under the Disabilities Act, the "persons with disabilities" are entitled to the benefits of all the Schemes and benefits provided by the Government and there cannot be further discrimination between a person with disability of 'blindness' and a person with disability of 'hearing impairment'. Such discrimination has not been envisaged under the Disabilities Act. The differentia sought to be canvassed by the Ministry of Finance has no rational relation to the object sought to be achieved by the Disabilities Act, which envisages to give equal opportunities, protection and rights to the "persons with disabilities".
LGBT (Lesbian, Gay, Bi-sexual Transgender) community and other communities	The constitutional validity of section 377 of the Indian Penal Code, 1860 dealing with unnatural offences was challenged on the ground that the same has been used to perpetrate harassment, blackmail and torture on certain persons, especially those belonging to the LGBT (Lesbian, Gay, Bi-sexual	No uniform test can be culled out to classify acts as "carnal intercourse against the order of nature". The acts which fall within the ambit of the section can only be determined with reference to the act itself and the circumstances in which it is executed. The Supreme Court held that those who indulge in carnal intercourse in the ordinary course and those who indulge in carnal intercourse against the order

	Transgender) community.(<i>Suresh Kumar Koushal v Naz Foundation</i> , (2014) 1 SCC 1)	of nature constitute different classes and the people falling in the latter category cannot claim that Section 377 suffers from the vice of arbitrariness and irrational classification.
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5. Article 14 Strikes at Arbitrariness

Equality is antithetic to arbitrariness. This new approach was developed by Supreme Court in *E.P. Royappa v State of Tamil Nadu*.¹³ It was observed that equality is a dynamic concept with many aspects and dimensions and it cannot be “cribbed cabined and confined” within traditional and doctrinaire limits.¹⁴ The court reiterated the same opinion in *Maneka Gandhi v Union of India*¹⁵ where it is observed that Article 14 strikes at arbitrariness in state action and ensures fairness and equality of treatment. This new approach has been consistently applied by the courts in determining the true scope of the equalizing principle. Though there cannot be any exact definition of arbitrariness but a basic and obvious test to apply in such cases is to see whether there is any discernible principle emerging from the impugned action which satisfies the test of reasonableness.

• 5.1 Doctrine of Justice, Equity, Fairness and Reasonableness in the State Action

Every decision of the State as well as its agencies/instrumentalities to grant largesse must be founded on a sound, transparent, discernible and well defined policy. It shall be made known to the public by publication in the Official Gazette. Such policy must be executed by adopting a non- discriminatory and non-arbitrary method irrespective of the class or category of persons proposed to be benefitted by the policy.

Principle of Reasonableness	Decision taken by Authority	Application of the Doctrine
The State and/or its agencies/instrumentalities cannot give largesse to any person according to the sweet will and whims of the political entities and/or officers of the State	The decision of the Government to allot 20 acres land to late Shri Kushabhau Thakre Memorial Trust without any advertisement and without inviting other similarly situated organisations/institutions to participate in the process of allotment. (<i>Akhil Bhartiya Upbhokta Congress v State of Madhya</i>	The distribution of largesse like allotment of land, grant of quota, permit licence etc. by the State and its agencies/instrumentalities should always be done in a fair and equitable manner and the element of favoritism or nepotism shall not influence the exercise of discretion, if any, conferred upon the particular functionary or

¹³ AIR 1974 SC 555.

¹⁴ H M Seervai, *Constitutional Law of India*, 437 (4th edn, Volume 1, Universal Law Publishing Co Pvt Ltd 2013).

¹⁵ AIR 1978 SC 597.

	Pradesh, AIR 2011 SC 1834)	officer of the State.
	Radio spectrum in 2G band was deliberately kept underpriced and allocated on first-come-first-served (FCFS) basis. Spectrum thus, falling into hands of some unscrupulous parties who had no genuine desire of providing 2G telecom services and Spectrum was used by them to earn huge profits by its indirect sale via sale of equity. (Centre for Public Interest Litigation v Union of India, AIR 2012 SC 3725)	Manifestly unwise economic decision of a Government Department resulting in misallocation/misuse of scarce resource was held to be arbitrary.
Principles of governance have to be tested on the touchstone of justice, equity and fair play	Malafide termination of SSP whose eligibility, suitability or credibility has never been questioned, after change in Government. (J. Jayalithaa v State of Karnataka, (2014) 2 SCC 401)	If the reasons for taking the decisions are not based on values but to achieve popular accolade, the decision cannot be allowed to operate. The State should not change its stand merely because the other political party has come into power. Political agenda of an individual or a political party should not be subversive of rule of law.

But every decision by the state cannot be challenged on ground of arbitrariness. The Courts have always held that it is open to the State and the authorities to take economic and management decision depending upon the exigencies of a situation guided by appropriate financial policy notified in public interest.¹⁶

• **5.2 Striking Down of Any Legislative provision/Regulation/Rule on Ground of Being Arbitrary**

Policy/Decision/Regulation/Provision	Striking Down of the Same Being Arbitrary
Policy devised by the Union and the States facing Maoist insurgency whereby tribal youth appointed as SPOs are placed in grave danger by virtue of the fact that they are employed in counter-insurgency activities against the Maoists/Naxalites in Chattisgarh. (Nandini Sundar v State of Chattisgarh, AIR 2011 SC 2839.)	Subjecting such youngsters to the same levels of dangers as members of the regular force who have better educational backgrounds, receive better training, and because of better educational backgrounds possess a better capacity to benefit from training that is appropriate for the duties to be performed in counter insurgency activities, would be to treat unequal as equals. Moreover, in as much as such youngsters, with such low educational qualifications and the consequent scholastic inabilities to benefit from appropriate training, can also not be expected to be effective in engaging in counter-insurgency activities, the policy of employing such youngsters as SPOs engaged in counter-insurgency activities is ir-rational, arbitrary and capricious.
The Constitutional validity of section 27(3) of Arms Act was challenged as it provides mandatory death penalty to anyone who uses any prohibited arms or prohibited ammunition or acts in contravention of Section 7. (State of Punjab v Dalbir Singh, AIR 2012 SC 1040.)	The word 'use' has not been defined in the Act. Therefore, the word 'use' has to be viewed in its common meaning. In view of such very wide meaning of the word 'use' even an unintentional or an accidental use resulting in death of any other person shall subject the person so using to a death penalty. Both the words 'use' and 'result' are very wide. Such a law is neither just, reasonable nor is it fair and falls out of the 'due process' test.
The constitutional validity of Bombay Police (Amendment) Act of 2005 was challenged whereby Section 33(a)(i)	The distinction, the foundation of which is classes of the establishments and classes/kind of persons, who frequent the establishment and those who own the establishments cannot be supported under the constitutional philosophy so clearly

¹⁶ *Pathan Mohammed Suleman rehmatkhan v State Of Gujarat* (2014) 4 SCC 156, 163. It was observed by the Supreme Court that it is well settled that non-floating of tenders or absence of public auction or invitation alone is not a sufficient reason to characterize the action of a public authority as either arbitrary or unreasonable or amounted to mala fide or improper exercise of power.

prohibits holding of a performance of dance, of any kind or type, in any eating house, permit room or beer bar having facilities below the rank of 3 star.(State of Maharashtra v Indian Hotel & Restaurants Assn, AIR 2013 SC 2582.)	stated in the Preamble of the Constitution of India and the individual Articles prohibiting discrimination on the basis of caste, colour, creed, religion or gender. Thus, once the prima facie proof of the arbitrary classification of the establishments under Sections 33A and 33B was given, it was duty of the State to justify the reasonableness of the classification.
The pick and choose methodology adopted by the State in resisting the claim of similarly situated doctors regarding payment of Non Practicing Allowance payable to them and which shall be taken into consideration for calculating their pension.(K C Bajaj v Union of India, (2014) 3 SCC 777.)	The Supreme Court held that State cannot arbitrarily pick and choose from amongst similarly suited persons, to pursue legal proceedings against some and not to do so consciously against others. Such an approach would be ex facie arbitrary, unjust and violative of Article 14.

• 5.3 Doctrine of Reasonability Applied By Courts

	Law/Provision/Regulation	Application of Doctrine
Law Relating to the Recognition of Political Party as State Party (Desiya Murpokku Dravida Kazhagam v Election Commission of India, AIR 2012 SC 2191.)	The constitutional validity of the amendment of the Election Symbols (Reservation and Allotment) Order, 1968 was challenged as it mandates that in order to be recognized as a State party in the State, it would have to secure not less than 6% of the total valid votes polled in the State and should also have returned at least 2 members to the Legislative Assembly of the State.	The evolution of the law relating to the criteria for a political party to be recognized as a State Party clearly indicates that the Election Commission, in its wisdom, was of the view that in order to be recognized as a political party, such party should have achieved a certain bench-mark in State politics. In order to gain recognition as a political party, a party has to prove itself and to establish its credibility as a serious player in the political arena of the State.
Requirement of "Minimum Office Area" for Private Tour Operator (PTO) for Ferrying Pilgrims for Haj (Union of India v Rafique Shaikh Bhikam, AIR 2012 SC 2453.)	The Government of India 2011 Haj Policy required a private operator/travel agent to have "minimum office area of 250 sq. ft." as one of the eligibility conditions for registration for ferrying pilgrims for Hajj.	It is reasonable as some of the PTOs after getting registration and allocation of seats instead of carrying the pilgrims themselves sold the seats to other PTOs. The Ministry decided to take action against such unscrupulous PTOs. A genuine PTO should be having an office with a reasonable area. Its purpose is to protect the interests of the pilgrims.
Prescribing Age of 18 Years under Juvenile Justice Act is Reasonable. (Salil Bali v Union Of India, AIR 2013 SC 3743.)	The Juvenile Justice (Care and Protection of Children) Act, 2000 provides age of understanding as eighteen years. Keeping in view the involvement of large number of juveniles in commission of crimes, whether it is reasonable.	The Juvenile Justice (Care and Protection of Children) Act, 2000, is in tune with the provisions of the Constitution and one of the other considerations which weighed with the legislation in fixing the age of understanding at eighteen years is on account of the scientific data that indicates that the brain continues to develop and the growth of a child continues till he reaches at least the age of eighteen years and that it is at that point of time that he can be held fully responsible for his actions.
Adoption by Muslims under Juvenile Justice Act.(Shabnam Hashmi v. Union of India, (2014) 4 SCC 1.)	The institution of adoption is not recognized under Muslim law. Keeping in view the restriction imposed on them by personal law whether they could make adoption under Juvenile Justice Act (J J Act, 2000).	Adoption by Muslims is permitted vide JJ Act, 2000. They can adopt a child with full rights as natural parents under provisions of Section 41 of Juvenile Justice (Care and Protection of Children) Act, 2000. It was further observed that personal laws cannot dictate the operation of provisions of an enabling statute like JJ Act, 2000 and cannot come in the way of person who chooses to adopt a child under JJ Act, 2000. It is a secular law and a small step in reaching the goal of Uniform Civil Code under Article 44 of Constitution.

6. Article 14 Provides Positive and not Negative Equality

Any action or order contrary to law does not confer any right upon any person for similar treatment.

Equality cannot be invoked to perpetuate an illegal order.

CASE	PROVISION/DECISION	Equality cannot be invoked to perpetuate an illegal order
<i>Commissioner of police, New Delhi</i> v <i>Mehar singh</i> AIR 2013 SC 2861.	1. Appointments to be made in Police Force by Screening Committee. 2. Rejected persons challenged their rejection on the ground of earlier appointments of certain persons of doubtful integrity being made by the committee.	If the Screening Committee which is constituted to carry out the object of the comprehensive policy to ensure that people with doubtful background do not enter the police force, deviates from the policy, makes exception and allows entry of undesirable persons, it is undoubtedly guilty of committing an act of grave disservice to the police force but we cannot allow that illegality to be perpetuated by allowing the respondents to rely on such cases.
<i>Oswal Agro Mills Ltd. v Hindustan Petroleum Corpn Ltd</i> (2014) 2 SCC 491.	1. Proposed construction of the residential cum commercial complex by Oswal Group in the vicinity of the refineries and other storage tanks of Hindustan Petroleum Corporation Limited (HPCL). 2. HPCL opposed this proposal and filed petition against the same which was upheld by the High Court. 3. Oswal Group pleaded that there are already buildings in the vicinity.	Construction of high rise building within 800 meters of the Respondent's refineries, which is located in an industrial area with many other industries, is a threat to the security and safety of the Respondent. The high rise buildings would overlook the storage tanks containing highly inflammable substances and may serve as a launching ground for any external object towards it by terrorists and the kind. Merely because there were already other buildings in the vicinity, it cannot be a ground for allowing the Appellant to do the same

7. Rules of Natural Justice Implicit in Article 14

Natural justice is held to be the essence of fair adjudication, deeply rooted in tradition and conscience, to be ranked as fundamental.

Natural justice is a branch of public law. It is a formidable weapon which can be wielded to secure justice to citizens. Rules of natural justice are 'basic values' which a man has cherished throughout the ages. Principles of natural justice control all actions of public authorities by applying rules relating to reasonableness, good faith and justice, equity and good conscience. Natural justice is a part of law which relates to administration of justice. Rules of natural justice are indeed great assurances of justice and fairness. The underlying object of rules of natural justice is to ensure fundamental liberties and rights of subjects. They thus serve public interest. The golden rule which stands firmly established is that the

doctrine of natural justice is not only to secure justice but to prevent miscarriage of justice.¹⁷ These observations are made by the Apex Court in *Justice P D Dinakaran's case* where he had objected to the inclusion of Shri P P Rao, Senior Advocate, Supreme Court of India in the Committee constituted by the Chairman of the Council of States (Rajya Sabha) under Section 3(2) of the Judges (Inquiry) Act, 1968.¹⁸

The adjudicatory process essentially has to be in consonance with the principles of natural justice, including the doctrine of *audi alteram partem*. Hearing the parties, application of mind and recording of reasoned decision are the basic elements of natural justice.¹⁹ Even the State Information Commission exercising powers under the provisions of the Right to Information Act, 2005, is performing adjudicatory functions where two parties raise their respective issues to which the State Information Commission is expected to apply its mind and pass an order directing disclosure of the information asked for or declining the same.²⁰

8. Conclusion

In the end, it is submitted that Article 14 ensures equality before law and strikes at arbitrary and discriminatory state action. If power conferred by statute on any authority of the State is vagrant and unconfined and no standards or principles are laid down by the statute to guide and control the exercise of such power, the statute would be violative of the equality clause, because it would permit arbitrary and capricious exercise of power, which is the antithesis of equality before law.²¹ Our Constitution envisages a society governed by rule of law. Absolute discretion uncontrolled by guidelines which may permit denial of equality before law is antithesis of rule of law.²² The exercise of all administrative power vested in public authority must be structured within a system of controls informed by relevance and reason, relevance in relation to the object which it seeks to serve, and reason in regard to the manner in which it attempts to do so.²³

9. Summary

- Article 14 of the Constitution provides Right to Equality
- Two phrases are used in it i.e. Equality Before Law and Equal Protection of Laws

¹⁷ *Justice P.D. Dinakaran v Hon'ble Judges Inquiry Committee*, AIR 2011 SC 3711, 3727, Para 22, Justice G S Singvi.

¹⁸ *Id.* at 3715, Para 1, Justice G S Singvi.

¹⁹ *Manohar Manikrao Anchule v State of Maharashtra*, AIR 2013SC 681, 686, Para 17, Justice G S Singvi.

²⁰ *Id.* at 686, Para 17, Justice G S Singvi.

²¹ *Supra* note 7 at 963.

²² *Id.*, at 964.

²³ *Id.*, at 969.

- Equality before law is a negative concept whereas equal protection of laws is a positive concept.
- Equality cannot be invoked to perpetuate illegality.
- Equality does not mean absolute equality. It permits reasonable classification.
- Article 14 provides that there should be justice, equity, fairness and reasonableness in state action as it is against arbitrariness.
- Principles of natural justice are an integral part of Article 14.

